

Senate File 2415 - Introduced

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BY BENNETT

A BILL FOR

1 An Act relating to provider requirements concerning the mental
2 health of users of an artificial intelligence chatbot, and
3 providing civil penalties.

4 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF IOWA:

1 Section 1. NEW SECTION. 554J.1 Definitions.

2 For purposes of this chapter:

3 1. "*Artificial intelligence chatbot*" means a software
4 program or application that uses natural language processing
5 or similar machine-learning techniques to simulate human
6 conversation or generate human-like responses to user input.

7 2. "*Mental health advice*" means a statement, recommendation,
8 or response purporting to diagnose, treat, mitigate, or address
9 emotional distress, a psychological disorder, self-harm,
10 suicidal ideation, or another mental health concern.

11 3. "*Provider*" means a person that designs, deploys, or
12 operates an artificial intelligence chatbot that is accessible
13 to users in this state.

14 Sec. 2. NEW SECTION. 554J.2 Prohibited conduct — crisis
15 intervention required.

16 1. A provider shall not design or operate an artificial
17 intelligence chatbot in a manner that allows the artificial
18 intelligence chatbot to offer or simulate professional mental
19 health advice.

20 2. An artificial intelligence chatbot shall not represent
21 itself as a licensed professional or offer services that would
22 require licensure under chapter 154B or 154D.

23 3. A provider shall implement reasonable protocols to
24 have the provider's artificial intelligence chatbot detect
25 expressions of self-harm, suicidal ideation, or emotional
26 distress by users. Upon detection of such expressions,
27 the artificial intelligence chatbot shall refer the user to
28 appropriate crisis services, including but not limited to the
29 national suicide prevention lifeline, the Iowa crisis hotline,
30 or emergency services.

31 Sec. 3. NEW SECTION. 554J.3 Required disclosures and
32 disclaimers.

33 1. Each artificial intelligence chatbot accessible to
34 a user in this state shall explicitly disclose in clear,
35 conspicuous, and easily understood language that the artificial

1 intelligence chatbot is artificial intelligence, is not a
2 human, and is not a substitute for professional mental health
3 care.

4 2. A disclosure required under this section shall appear at
5 all of the following times:

6 a. At the beginning of the artificial intelligence chatbot's
7 interaction with a user prior to providing the user with a
8 response to user input.

9 b. At regular intervals during a user's continuous
10 interaction with the artificial intelligence chatbot.

11 c. When the artificial intelligence chatbot generates a
12 response related to emotional well-being, mental health, or
13 self-harm.

14 Sec. 4. NEW SECTION. 554J.4 Enforcement and penalties.

15 1. The attorney general shall have authority to enforce this
16 chapter.

17 2. A violation of this chapter is an unfair practice under
18 section 714.16.

19 Sec. 5. NEW SECTION. 554J.5 Limitations.

20 This chapter shall not be construed to impose liability on
21 an educational institution or a library solely for providing
22 access to general-use software or the internet.

23 Sec. 6. NEW SECTION. 554J.6 Rulemaking authority.

24 The department of health and human services, in consultation
25 with the chief information officer of the department of
26 management, shall adopt rules to implement this chapter. Rules
27 shall include but not be limited to all of the following:

28 1. Standards for detection protocols for self-harm,
29 suicidal ideation, and emotional distress.

30 2. Acceptable formats for providing disclosures under
31 section 554J.3.

32 3. Safe use guidelines for artificial intelligence chatbot
33 technologies.

34 Sec. 7. Section 714.16, subsection 2, Code 2026, is amended
35 by adding the following new paragraph:

1 NEW PARAGRAPH. *t.* It is an unlawful practice for a person
2 to violate chapter 554J.

3	EXPLANATION
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4 The inclusion of this explanation does not constitute agreement with
5 the explanation's substance by the members of the general assembly.

6 This bill relates to provider requirements concerning the
7 mental health of users of an artificial intelligence chatbot
8 (chatbot).

9 The bill defines “artificial intelligence chatbot” as a
10 software program or application that uses natural language
11 processing or similar machine-learning techniques to simulate
12 human conversation or generate human-like responses to user
13 input.

14 The bill defines “provider” as a person that designs,
15 deploys, or operates an artificial intelligence chatbot that is
16 accessible to users in this state.

17 The bill also defines "mental health advice".

18 The bill prohibits a provider from designing or operating
19 a chatbot in a manner that allows the chatbot to offer or
20 simulate professional mental health advice.

21 The bill prohibits a chatbot from representing itself
22 as a licensed professional or offering services that would
23 require licensure under Code chapter 154B (psychology) or 154D
24 (behavioral science).

25 The bill requires a provider to implement reasonable
26 protocols to have the provider's chatbot detect expressions of
27 self-harm, suicidal ideation, or emotional distress by users.
28 Upon detection of such expressions, the chatbot must refer the
29 user to appropriate crisis services, including but not limited
30 to the national suicide prevention lifeline, the Iowa crisis
31 hotline, or emergency services.

32 The bill requires each chatbot accessible to a user in
33 this state to explicitly disclose in clear, conspicuous, and
34 easily understood language that the chatbot is artificial
35 intelligence, is not a human, and is not a substitute for

1 professional mental health care. Such a disclosure must appear
2 at the beginning of the chatbot's interaction with a user prior
3 to providing the user with a response to user input; at regular
4 intervals during a user's continuous interaction with the
5 chatbot; and when the chatbot generates a response related to
6 emotional well-being, mental health, or self-harm.

7 The bill authorizes the attorney general to enforce the
8 bill. A violation of the bill is an unfair practice under
9 Code section 714.16 (consumer fraud) and is punishable by
10 injunction, disgorgement of moneys, restoration of improperly
11 acquired moneys, and a civil penalty of up to \$40,000 per
12 violation.

13 The bill shall not be construed to impose liability on
14 an educational institution or a library solely for providing
15 access to general-use software or the internet.

16 The bill requires the department of health and human
17 services (HHS), in consultation with the chief information
18 officer of the department of management, to adopt rules to
19 implement the bill, and details certain subjects HHS must adopt
20 rules to address.

21 The bill makes a conforming change to Code section 714.16
22 (consumer frauds).